

25TRCV03843 25TRCV03843

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-09-02

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CM%2C09%2F02%2F2026

Source SHA-256: 80174d584f7bb6a6b79efec638af8b79829c8d77fe61627d6a69aa62030ec9e3

Case Number: 25TRCV03843 Hearing Date: September 2, 2026 Dept: M

CONFIDENTIAL COURT DOCUMENT

(For Judge and Court Staff Only)

Honorable Amy N. Carter Wednesday, September 2, 2026

Department M Calendar No.

PROCEEDINGS

Olena

Kostiv, et al. v. Peter Kostiw, et al.

25TRCV03843

1. Olena Kostiv, et al.'s Motion for Summary Judgment

TENTATIVE RULING

Olena Kostiv, et al.'s Motion for
Summary Judgment is denied.

Background

Plaintiffs filed the Complaint on November 10, 2025.

Plaintiffs allege the following facts. This is a quiet title action as to the
following property: 4804 Laurette St. Torrance, CA 90503.

Motion for Summary Judgment

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” CCP § 437c(p)(2). “Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” CCP § 437c(p)(2). “If the plaintiff cannot do so, summary judgment should be granted.” Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal. App. 4th 463, 467.

“A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” Code Civ. Proc., § 437c(p)(1).

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all

reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi, 159 Cal.App.4th at 467; CCP § 437c(c).)

Plaintiffs move for summary judgment on Plaintiffs’

Complaint on the grounds that no triable issue of material fact exists as to their cause of action for Quiet Title and that they are entitled to judgment.

Alternatively, Plaintiffs move for summary adjudication of the following issues:

“Issue No. 1: That plaintiffs Peter Kostiw and Olena

Kostiv acquired the real property commonly known as 4804 Laurette Street, Torrance, California 90503 (Assessor’ Parcel Number 7517-033-019) on July 14, 2006, as joint tenants, and remain th intended record owners of the Property as joint tenants.

Issue No. 2: That the name "Elena Kostiv"

appearing on the grant deed recorded February 14, 2025 as Document Number 20250095500 is a scrivener's misspelling o "Olena Kostiv," and that Olena Kostiv is the intended grantee identified on that deed.

Issue No. 3: That no party or non-party has asserted

any right, title, or interest in the subject Property adverse to plaintiffs, and that no such adverse claim exists as of the date of judgment.” (Notice of Motion, p. 3, lines 1-12).

Code Civ. Proc., § 437c(a)(2) states:

“Notice of the motion and supporting papers shall be

served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days.”

The motion must be denied due to defective notice. Notice

of a total of 81 days is required for a motion for summary judgment. In this

case, the time is increased to 86 days because the motion was served by mail.

The regular notice provisions do not apply to a motion for summary judgment. Where the moving party notices the hearing in less

than the required time, the motion must be denied. The Court cannot cure the defect by continuing the motion to account for the defective notice. *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1268.

Here, the motion was filed and served by regular mail on August 10, 2026. The motion was scheduled for hearing on September 2, 2026. Thus, Plaintiffs failed to serve the motion at least 81 days before the hearing date.

Therefore, Plaintiffs' motion for summary judgment and/or summary adjudication is denied.

Defendant is ordered to give notice of this ruling.